

There is no claim that amendment will cause loss of evidence or witnesses; instead, Defendants argue, without authority, that “Plaintiffs should not be permitted to avoid adjudication of the claims they actually pleaded by changing the pleading after Defendants have already incurred the burden and expense of preparing a dispositive motion.” (Opp. at 14:12-13.) All three of the cases cited by Defendants in support of their argument that the Court should deny the motion because it would moot their pending summary judgment hearing are distinguishable. (Opp. at 14:2-8 [citing *Applegate v. Carrington Foreclosure Services, LLC* (2025) 112 Cal.App.5th 356, 368-369 (*Applegate*); *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 (*Melican*); and *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 (*Falcon*).].)

In all three cases, the request to amend the underlying pleading was made orally at the hearing on the motion for summary judgment that would have been rendered moot. As the court in *Applegate* noted, “it would have been within the trial court’s discretion to deny the request for leave to amend either because [plaintiff] failed to proffer an amendment that stated a cause of action or because the circumstances demonstrated unexplained delay, lack of diligence, and unfairness to defendants.” (*Applegate, supra*, 112 Cal.App.5th at p.369.) Here, Plaintiffs filed a regularly noticed motion that complies with California Rule of Court 3.1324 subsections (a) and (b). And, as the Court described above, the facts do not support a conclusion that Plaintiffs unduly delayed in moving to amend.

Finally, Defendants’ additional arguments regarding futility and inflammatory accusations are directed at the merits of the proposed amendment and are not grounds to deny amendment.

Because the Court concludes that Plaintiff has not been dilatory, and any prejudice to the Defendants is ameliorated by the new trial date and extended deadlines based on that new trial date, the motion for leave to amend is **granted**.

3. 9:00 AM CASE NUMBER: C24-02090

CASE NAME: LEAH FREEMAN VS. DAVID HUNTER

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

It appears from the documents before the Court that (a) Christopher Brown is now represented; (b) Cross-Complainants will be dismissing the case against him; and (c) conversations about resolution are ongoing. The Court continues this Case Management Conference to September 15, 2026, at 8:30 am. No appearances required for August 20, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02568

CASE NAME: TYLER LIND VS. SEGWAY INC.

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO EDAN BENMELECH FOR DEF SEGWAY INC.

FILED BY: SEGWAY INC.

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

5. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*HEARING ON MOTION IN RE: QUASH SUMMONS
FILED BY: DIGGER'S DINER CONCORD, INC.
TENTATIVE RULING:

Before the Court is Specially appearing Defendant Digger's Diner Concord, Inc.'s Motion to Quash Service of Summons.

For the following reasons, Defendant's Motion to Quash is **denied**.

Initial Considerations

"Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages." (Cal. R. Ct. 3.1113(d).) Plaintiff's opposition memorandum is 18 pages, excluding the caption page, table of contents, table of authorities, and proof of service. If a party believes it needs additional pages they need file a request with the court which "must state reasons why the argument cannot be made within the stated limit." (*Id.* at (e).) A memorandum that exceeds the page limit may be rejected by the Court. (Cal. R. Ct. 3.1113 (g); 3.1300 (d); *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765.)

In addition, Plaintiff's counsel filed a declaration in support of the Opposition which attaches five exhibits (A-E). "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration fails to include any bookmarks, much less ones with the required information.

Plaintiff's counsel is reminded to comply with the Rules of Court going forward.

Tables of Contents and Authorities

Defendant's counsel points out several 'defects' in the tables provided by Plaintiff – arguing that the Court should strike the Opposition for these typos which appear to misstate the page on which certain arguments and cases appear. Each appears to be one-page off from the actual location. Highlighting these minor defects and seeking to have the Opposition stricken thereupon is absurd. The Court will not strike the Opposition based on the tables included therein.

Timeliness of Opposition

Defendant argues that Plaintiff's opposition was not timely filed and served. It notes that under Code of Civil Procedure section 1010.6, "electronic service of documents adds two days to the deadline for a responsive action." Defendant then argues: "Since the Plaintiff's Opposition was served by electronic service the other party should have served the Opposition at least 11 court days before the hearing to ensure that the person receives the papers on-time. (9 court days, plus 2 days for electronic service)" (Reply 3:16-18.) Apparently, Defendant is relying on Code of Civil Procedure